COMMERCIAL AGREEMENT - RECORD 020

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-020

1. Recitals and defined terms

This Termination Assistance and Transition Letter is made between Helioscope Robotics, Inc. as Provider and Tamarack Distribution Company as Customer, a industrial distribution business organised in Minnesota, contracting through Tamarack Distribution Company. Tamarack and the Provider have agreed that terms defined in the recitals and in Exhibit D carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

Read with Schedule 3, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. By way of qualification, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Tamarack runs 4 sites from Minnesota in industrial distribution, so the Termination Assistance and Transition Letter is administered locally and this clause is applied per site. Where Tamarack has raised a query the Provider has answered by reference to Article 3 (Scope of Supply), and the exchange is on the contract file.

Article 13 (Licences) provides that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. As drafted, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. This bites at Tamarack's 4 sites, since a industrial distribution operator administers the Termination Assistance and Transition Letter where the units work. Tamarack has taken the point up once since signature; the correspondence is filed against Article 14 (Indemnities) and did not result in an amendment.

As between Tamarack and the Provider, the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Procedurally, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. The Termination Assistance and Transition Letter reaches each of Tamarack's 4 sites separately, which is how a industrial distribution operator in Minnesota administers it. Tamarack has taken the point up once since signature; the correspondence is filed against Article 2 (Definitions) and did not result in an amendment.

As between Tamarack and the Provider, either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. Negotiated position: the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Because Tamarack is a Minnesota industrial distribution business with 4 sites, the Termination Assistance and Transition Letter devolves this to the site manager. The Tamarack file records the position as at the last amendment, and Article 8 (Acceptance) is the reference a reviewer should cite when raising it.

Tamarack transition letter - Schedule 5 - Notices, Periods and Addressees

Tamarack notice type	Subject	Period	Addressee	Method	Deemed given
TAM-N001	termination for cause	45 days	Chief Operating Officer	portal notice	on receipt
TAM-N002	price adjustment	20 days	Chief Operating Officer	courier and email	on despatch
TAM-N003	change of control	60 days	designated account executive	courier and email	on receipt
TAM-N004	service credit claim	30 days	Chief Operating Officer	courier and email	on the second business day after despatch
TAM-N005	renewal election	5 days	designated account executive	portal notice	on receipt
TAM-N006	non-renewal	35 days	Contracts Manager	portal notice	on receipt
TAM-N007	price adjustment	50 days	General Counsel	courier only	on the second business day after despatch
TAM-N008	non-renewal	5 days	Chief Operating Officer	portal notice	on despatch
TAM-N009	termination for cause	60 days	General Counsel	courier and email	on despatch

Tamarack notice type	Subject	Period	Addressee	Method	Deemed given
TAM-N010	termination for cause	65 days	General Counsel	email with acknowledgement	on the second business day after despatch
TAM-N011	breach	65 days	designated account executive	courier only	on the second business day after despatch
TAM-N012	termination for cause	45 days	General Counsel	courier only	on the second business day after despatch
TAM-N013	change of control	90 days	Contracts Manager	email with acknowledgement	on receipt
TAM-N014	non-renewal	20 days	Chief Operating Officer	email with acknowledgement	on receipt
TAM-N015	assignment request	20 days	Contracts Manager	portal notice	on despatch
TAM-N016	non-renewal	85 days	General Counsel	portal notice	on despatch
TAM-N017	price adjustment	80 days	Contracts Manager	courier only	on despatch
TAM-N018	breach	10 days	General Counsel	email with acknowledgement	on the second business day after despatch
TAM-N019	termination for cause	80 days	designated account executive	courier and email	on despatch
TAM-N020	breach	25 days	Chief Operating Officer	email with acknowledgement	on despatch
TAM-N021	price adjustment	50 days	General Counsel	courier and email	on despatch
TAM-N022	change of control	70 days	Chief Operating Officer	portal notice	on the second business day after despatch
TAM-N023	force majeure	90 days	designated account executive	email with acknowledgement	on the second business day after despatch
TAM-N024	non-renewal	80 days	Chief Operating Officer	courier only	on the second business day after despatch
TAM-N025	force majeure	10 days	Chief Operating Officer	email with acknowledgement	on receipt
TAM-N026	force majeure	90 days	Chief Operating Officer	email with acknowledgement	on despatch
TAM-N027	termination for cause	50 days	General Counsel	portal notice	on receipt
TAM-N028	change of control	75 days	General Counsel	courier and email	on the second business day after despatch
TAM-N029	service credit claim	30 days	designated account executive	email with acknowledgement	on receipt
TAM-N030	service credit claim	5 days	Contracts Manager	email with acknowledgement	on receipt
TAM-N031	price adjustment	40 days	Chief Operating Officer	portal notice	on despatch
TAM-N032	price adjustment	75 days	designated account executive	portal notice	on receipt
TAM-N033	breach	80 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
TAM-N034	assignment request	70 days	Contracts Manager	portal notice	on the second business day after despatch
TAM-N035	force majeure	90 days	Chief Operating Officer	portal notice	on receipt
TAM-N036	price adjustment	10 days	Chief Operating Officer	courier only	on receipt
TAM-N037	non-renewal	65 days	designated account executive	portal notice	on receipt
TAM-N038	assignment request	55 days	General Counsel	email with acknowledgement	on the second business day after despatch
TAM-N039	change of control	80 days	Contracts Manager	courier and email	on receipt
TAM-N040	assignment request	15 days	General Counsel	courier and email	on the second business day after despatch
TAM-N041	service credit claim	65 days	Contracts Manager	courier only	on receipt

Tamarack notice type	Subject	Period	Addressee	Method	Deemed given
TAM-N042	change of control	10 days	designated account executive	email with acknowledgement	on receipt
TAM-N043	service credit claim	55 days	General Counsel	portal notice	on the second business day after despatch
TAM-N044	change of control	65 days	designated account executive	email with acknowledgement	on receipt
TAM-N045	force majeure	5 days	Contracts Manager	courier and email	on receipt
TAM-N046	termination for cause	25 days	General Counsel	portal notice	on despatch
TAM-N047	breach	60 days	designated account executive	courier and email	on receipt
TAM-N048	force majeure	40 days	Contracts Manager	courier only	on despatch
TAM-N049	breach	75 days	General Counsel	portal notice	on the second business day after despatch
TAM-N050	non-renewal	85 days	designated account executive	courier and email	on the second business day after despatch
TAM-N051	change of control	25 days	Chief Operating Officer	courier only	on despatch
TAM-N052	termination for cause	65 days	General Counsel	portal notice	on despatch
TAM-N053	non-renewal	70 days	General Counsel	courier and email	on receipt
TAM-N054	price adjustment	90 days	General Counsel	courier and email	on receipt
TAM-N055	non-renewal	45 days	designated account executive	portal notice	on despatch
TAM-N056	price adjustment	60 days	Contracts Manager	courier only	on receipt
TAM-N057	price adjustment	15 days	designated account executive	email with acknowledgement	on despatch
TAM-N058	termination for cause	30 days	Chief Operating Officer	email with acknowledgement	on despatch
TAM-N059	change of control	30 days	Contracts Manager	courier only	on the second business day after despatch
TAM-N060	change of control	90 days	Chief Operating Officer	courier only	on despatch
TAM-N061	termination for cause	50 days	General Counsel	portal notice	on receipt
TAM-N062	force majeure	20 days	General Counsel	email with acknowledgement	on despatch
TAM-N063	renewal election	50 days	Contracts Manager	courier only	on the second business day after despatch
TAM-N064	price adjustment	25 days	designated account executive	courier and email	on receipt
TAM-N065	non-renewal	90 days	designated account executive	portal notice	on despatch
TAM-N066	price adjustment	75 days	General Counsel	courier only	on receipt
TAM-N067	non-renewal	80 days	General Counsel	courier only	on receipt
TAM-N068	renewal election	40 days	designated account executive	email with acknowledgement	on receipt
TAM-N069	force majeure	30 days	designated account executive	email with acknowledgement	on receipt
TAM-N070	service credit claim	5 days	designated account executive	courier only	on despatch
TAM-N071	termination for cause	35 days	designated account executive	courier and email	on the second business day after despatch
TAM-N072	non-renewal	40 days	General Counsel	courier and email	on the second business day after despatch
TAM-N073	renewal election	90 days	Chief Operating Officer	email with acknowledgement	on receipt
TAM-N074	non-renewal	30 days	designated account executive	email with acknowledgement	on receipt
TAM-N075	termination for cause	35 days	General Counsel	courier and email	on receipt
TAM-N076	termination for cause	80 days	Chief Operating Officer	portal notice	on the second business day after despatch
TAM-N077	price adjustment	10 days	designated account executive	courier and email	on the second business day after

Tamarack notice type	Subject	Period	Addressee	Method	Deemed given
					despatch
TAM-N078	breach	45 days	Chief Operating Officer	courier only	on the second business day after despatch

2. Scope of supply and orders

Tamarack pays the fees under Schedule 2 in consideration of the Provider's undertaking that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Per the amendment history, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. This bites at Tamarack's 4 sites, since a industrial distribution operator administers the Termination Assistance and Transition Letter where the units work. The Tamarack file records the position as at the last amendment, and Article 18 (Assignment) is the reference a reviewer should cite when raising it.

Tamarack pays the fees under Schedule 2 in consideration of the Provider's undertaking that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. On the face of the clause, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Tamarack runs 4 sites from Minnesota in industrial distribution, so the Termination Assistance and Transition Letter is administered locally and this clause is applied per site. The obligation as it applies to Tamarack was tightened at signature, and Article 8 (Acceptance) carries the negotiated wording rather than the standard wording.

Tamarack may require that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. As a matter of construction, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. For Tamarack, a industrial distribution operator running 4 sites out of Minnesota, the point matters because the Termination Assistance and Transition Letter is administered site by site. Nothing in the Tamarack negotiation history qualifies Article 21 (Governing Law and Disputes), and a reviewer should not read the pre-signature drafts as doing so.

On the terms of Schedule 5, title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. On any reading, performance is measured against the exhibit and not against any statement made in the parties' correspondence. 4 sites in Minnesota means Tamarack applies the Termination Assistance and Transition Letter through its regional operations team rather than through head office. Because Tamarack operates in industrial distribution, the practical burden of this clause falls on its Minnesota operation, and Article 7 (Service Levels) governs how it is measured.

3. Delivery, title and risk

The Provider has undertaken to Tamarack that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. On the operative wording, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. The Termination Assistance and Transition Letter reaches each of Tamarack's 4 sites separately, which is how a industrial distribution operator in Minnesota administers it. Notices under Article 10 (Change Control) go to the contracting entity named in the recital and not to any Tamarack affiliate that may operate a site.

Article 2 (Definitions) provides that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. On the negotiated text, performance is measured against the exhibit and not against any statement made in the parties' correspondence. The Termination Assistance and Transition Letter reaches each of Tamarack's 4 sites separately, which is how a industrial distribution operator in Minnesota administers it. The Tamarack relationship is managed against Article 12 (Intellectual Property) at each quarterly review, and any variance is minuted there rather than in the Order.

Tamarack bears the risk that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. As to enforcement, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer.

Operating 4 sites, Tamarack applies the Termination Assistance and Transition Letter at the point of delivery, as industrial distribution practice requires. The Tamarack file records the position as at the last amendment, and Article 13 (Licences) is the reference a reviewer should cite when raising it.

Tamarack retains the right, notwithstanding Article 6 (Fees and Payment), to require that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Intended effect: the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Operating 4 sites, Tamarack applies the Termination Assistance and Transition Letter at the point of delivery, as industrial distribution practice requires. Because Tamarack operates in industrial distribution, the practical burden of this clause falls on its Minnesota operation, and Article 8 (Acceptance) governs how it is measured.

Tamarack transition letter - Exhibit A - Fee Schedule and Annual Escalator

Tamarack fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
TAM-F001	lift attachment	14	$7,659	$107,226	2.2%	on renewal only
TAM-F002	lift attachment	26	$7,514	$195,364	5.4%	on renewal only
TAM-F003	gateway appliance	15	$3,286	$49,290	3.1%	on renewal only
TAM-F004	fleet controller	26	$5,192	$134,992	4.8%	on renewal only
TAM-F005	safety scanner kit	11	$2,367	$26,037	5.5%	on renewal only
TAM-F006	tote carrier	11	$7,863	$86,493	4.1%	annually each January
TAM-F007	tote carrier	8	$7,391	$59,128	3.0%	annually each January
TAM-F008	tote carrier	16	$6,565	$105,040	5.5%	annually each January
TAM-F009	safety scanner kit	27	$4,022	$108,594	5.0%	annually each January
TAM-F010	AMR-200 mobile unit	10	$7,427	$74,270	4.8%	annually on the anniversary
TAM-F011	charge dock	8	$8,029	$64,232	4.1%	not escalated
TAM-F012	AMR-400 heavy unit	28	$8,546	$239,288	4.6%	annually on the anniversary
TAM-F013	gateway appliance	27	$9,684	$261,468	3.2%	annually on the anniversary
TAM-F014	gateway appliance	15	$4,479	$67,185	3.4%	on renewal only
TAM-F015	AMR-400 heavy unit	7	$7,994	$55,958	4.4%	not escalated
TAM-F016	AMR-400 heavy unit	12	$4,604	$55,248	4.3%	annually on the anniversary
TAM-F017	charge dock	26	$4,584	$119,184	2.9%	annually on the anniversary
TAM-F018	safety scanner kit	13	$3,523	$45,799	2.9%	on renewal only
TAM-F019	tote carrier	17	$5,511	$93,687	5.6%	annually each January
TAM-F020	tote carrier	19	$3,191	$60,629	2.6%	annually each January
TAM-F021	tote carrier	31	$2,669	$82,739	2.0%	annually on the anniversary
TAM-F022	fleet controller	9	$9,679	$87,111	2.3%	not escalated
TAM-F023	AMR-200 mobile unit	27	$4,415	$119,205	3.2%	annually on the anniversary
TAM-F024	tote carrier	16	$7,041	$112,656	4.0%	annually each January
TAM-F025	tote carrier	11	$5,146	$56,606	2.3%	on renewal only
TAM-F026	AMR-400 heavy unit	23	$7,294	$167,762	4.9%	on renewal only
TAM-F027	gateway appliance	12	$2,619	$31,428	4.7%	annually on the anniversary
TAM-F028	charge dock	27	$6,123	$165,321	4.4%	annually on the anniversary
TAM-F029	lift attachment	6	$3,753	$22,518	3.9%	annually on the anniversary
TAM-F030	AMR-200 mobile unit	23	$2,611	$60,053	5.9%	annually on the anniversary

Tamarack fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
TAM-F031	AMR-400 heavy unit	7	$9,150	$64,050	4.9%	on renewal only
TAM-F032	safety scanner kit	29	$7,301	$211,729	5.1%	on renewal only
TAM-F033	gateway appliance	34	$8,793	$298,962	2.7%	annually on the anniversary
TAM-F034	gateway appliance	21	$2,213	$46,473	4.1%	on renewal only
TAM-F035	fleet controller	40	$9,216	$368,640	2.2%	on renewal only
TAM-F036	AMR-200 mobile unit	25	$2,610	$65,250	5.2%	annually on the anniversary
TAM-F037	AMR-200 mobile unit	24	$1,188	$28,512	2.3%	on renewal only
TAM-F038	gateway appliance	2	$7,561	$15,122	2.9%	not escalated
TAM-F039	safety scanner kit	34	$2,415	$82,110	5.8%	not escalated
TAM-F040	tote carrier	30	$8,051	$241,530	5.9%	annually on the anniversary
TAM-F041	tote carrier	13	$4,185	$54,405	2.3%	annually on the anniversary
TAM-F042	charge dock	10	$2,993	$29,930	5.0%	not escalated
TAM-F043	AMR-200 mobile unit	11	$9,002	$99,022	4.5%	not escalated
TAM-F044	fleet controller	4	$6,854	$27,416	5.5%	not escalated
TAM-F045	charge dock	19	$2,986	$56,734	2.8%	not escalated
TAM-F046	lift attachment	2	$2,172	$4,344	3.4%	annually each January
TAM-F047	AMR-200 mobile unit	37	$1,335	$49,395	4.7%	not escalated
TAM-F048	gateway appliance	26	$8,250	$214,500	4.2%	on renewal only
TAM-F049	charge dock	35	$6,462	$226,170	5.4%	annually each January
TAM-F050	tote carrier	13	$5,646	$73,398	5.0%	annually each January
TAM-F051	fleet controller	9	$7,235	$65,115	2.3%	annually on the anniversary
TAM-F052	gateway appliance	29	$6,596	$191,284	3.2%	annually each January
TAM-F053	safety scanner kit	35	$4,531	$158,585	3.5%	annually each January
TAM-F054	gateway appliance	39	$1,826	$71,214	4.0%	on renewal only
TAM-F055	AMR-200 mobile unit	8	$5,987	$47,896	2.5%	annually each January
TAM-F056	lift attachment	22	$5,248	$115,456	4.8%	annually on the anniversary
TAM-F057	tote carrier	38	$9,034	$343,292	4.8%	on renewal only
TAM-F058	safety scanner kit	39	$5,124	$199,836	3.4%	annually each January
TAM-F059	fleet controller	33	$7,915	$261,195	2.8%	annually each January
TAM-F060	charge dock	22	$5,875	$129,250	2.8%	annually on the anniversary
TAM-F061	AMR-200 mobile unit	19	$6,440	$122,360	5.1%	annually each January
TAM-F062	fleet controller	20	$1,566	$31,320	5.1%	annually each January
TAM-F063	AMR-200 mobile unit	28	$8,548	$239,344	4.3%	annually on the anniversary
TAM-F064	AMR-200 mobile unit	36	$5,046	$181,656	3.2%	annually on the anniversary
TAM-F065	gateway appliance	21	$1,307	$27,447	3.7%	annually on the anniversary
TAM-F066	gateway appliance	16	$2,994	$47,904	4.2%	annually each January
TAM-F067	charge dock	17	$8,246	$140,182	2.8%	not escalated
TAM-F068	tote carrier	21	$3,649	$76,629	4.3%	not escalated
TAM-F069	fleet controller	19	$8,344	$158,536	4.5%	annually on the anniversary

Tamarack fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
TAM-F070	AMR-400 heavy unit	35	$8,118	$284,130	5.4%	annually each January
TAM-F071	gateway appliance	35	$1,948	$68,180	4.8%	annually on the anniversary
TAM-F072	gateway appliance	35	$2,718	$95,130	4.0%	on renewal only
TAM-F073	tote carrier	19	$6,811	$129,409	4.7%	annually on the anniversary
TAM-F074	charge dock	26	$9,649	$250,874	5.4%	annually on the anniversary
TAM-F075	tote carrier	19	$6,805	$129,295	2.3%	on renewal only
TAM-F076	charge dock	37	$8,592	$317,904	4.6%	annually each January
TAM-F077	gateway appliance	30	$7,059	$211,770	3.3%	on renewal only
TAM-F078	charge dock	20	$9,261	$185,220	5.9%	annually on the anniversary
TAM-F079	gateway appliance	2	$4,074	$8,148	5.2%	on renewal only
TAM-F080	AMR-200 mobile unit	36	$4,624	$166,464	2.4%	not escalated
TAM-F081	AMR-200 mobile unit	39	$1,465	$57,135	2.8%	not escalated
TAM-F082	lift attachment	25	$1,989	$49,725	5.1%	on renewal only
TAM-F083	AMR-200 mobile unit	28	$7,131	$199,668	5.0%	annually each January
TAM-F084	gateway appliance	40	$5,163	$206,520	3.5%	on renewal only
TAM-F085	AMR-400 heavy unit	10	$4,382	$43,820	5.8%	not escalated
TAM-F086	AMR-400 heavy unit	6	$8,089	$48,534	5.1%	annually each January
TAM-F087	charge dock	22	$8,142	$179,124	2.7%	annually each January
TAM-F088	fleet controller	22	$6,676	$146,872	4.9%	not escalated

4. Fees, invoicing and escalation

Read with Exhibit B, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. In application, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Tamarack runs 4 sites from Minnesota in industrial distribution, so the Termination Assistance and Transition Letter is administered locally and this clause is applied per site. The Tamarack file records the position as at the last amendment, and Article 14 (Indemnities) is the reference a reviewer should cite when raising it.

As between Tamarack and the Provider, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. As agreed, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. For Tamarack, a industrial distribution operator running 4 sites out of Minnesota, the point matters because the Termination Assistance and Transition Letter is administered site by site. The obligation as it applies to Tamarack was tightened at signature, and Article 10 (Change Control) carries the negotiated wording rather than the standard wording.

Tamarack is not obliged, under Exhibit D, to accept that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. As between them, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Because Tamarack is a Minnesota industrial distribution business with 4 sites, the Termination Assistance and Transition Letter devolves this to the site manager. Nothing in the Tamarack negotiation history qualifies Article 16 (Term and Termination), and a reviewer should not read the pre-signature drafts as doing so.

Tamarack bears the risk that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. In terms of consequence, the article is severable, and its

unenforceability in one jurisdiction does not affect its operation elsewhere. Because Tamarack is a Minnesota industrial distribution business with 4 sites, the Termination Assistance and Transition Letter devolves this to the site manager. Where Tamarack has raised a query the Provider has answered by reference to Article 11 (Data and Telemetry), and the exchange is on the contract file.

5. Service levels and credits

The Provider warrants to Tamarack that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. Practically, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Because Tamarack is a Minnesota industrial distribution business with 4 sites, the Termination Assistance and Transition Letter devolves this to the site manager. The Tamarack file records the position as at the last amendment, and Article 13 (Licences) is the reference a reviewer should cite when raising it.

Tamarack and the Provider agree that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Intended effect: the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Running 4 sites in industrial distribution, Tamarack takes this obligation at site level rather than centrally under the Termination Assistance and Transition Letter. Notices under Article 10 (Change Control) go to the contracting entity named in the recital and not to any Tamarack affiliate that may operate a site.

Tamarack may require that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. On this point, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Tamarack runs 4 sites from Minnesota in industrial distribution, so the Termination Assistance and Transition Letter is administered locally and this clause is applied per site. Because Tamarack operates in industrial distribution, the practical burden of this clause falls on its Minnesota operation, and Article 16 (Term and Termination) governs how it is measured.

Article 8 (Acceptance) provides that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Deliberately so: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. For Tamarack, a industrial distribution operator running 4 sites out of Minnesota, the point matters because the Termination Assistance and Transition Letter is administered site by site. Where Tamarack has raised a query the Provider has answered by reference to Article 14 (Indemnities), and the exchange is on the contract file.

6. Acceptance and change control

The Provider warrants to Tamarack that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Deliberately so: an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. In industrial distribution the burden of this sits with operations, and Tamarack discharges it across 4 sites under the Termination Assistance and Transition Letter. The Tamarack relationship is managed against Article 7 (Service Levels) at each quarterly review, and any variance is minuted there rather than in the Order.

Tamarack Distribution Company is entitled to require that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. As to enforcement, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Minnesota is where Tamarack runs industrial distribution operations across 4 sites, and the Termination Assistance and Transition Letter follows that footprint. The Tamarack relationship is managed against Article 6 (Fees and Payment) at each quarterly review, and any variance is minuted there rather than in the Order.

Article 11 (Data and Telemetry) of the Termination Assistance and Transition Letter is to be construed so that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. On the negotiated text, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Tamarack runs 4

sites from Minnesota in industrial distribution, so the Termination Assistance and Transition Letter is administered locally and this clause is applied per site. The obligation as it applies to Tamarack was tightened at signature, and Article 20 (Notices) carries the negotiated wording rather than the standard wording.

Tamarack may require that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. As to enforcement, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Tamarack runs 4 sites from Minnesota in industrial distribution, so the Termination Assistance and Transition Letter is administered locally and this clause is applied per site. Because Tamarack operates in industrial distribution, the practical burden of this clause falls on its Minnesota operation, and Article 13 (Licences) governs how it is measured.

Tamarack transition letter - Schedule 2 - Sites and Operating Patterns

Tamarack site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
TAM-S001	Granite facility	22	2024-11-09	single shift	Provider furnished	accepted
TAM-S002	Keystone facility	10	2026-02-11	continuous	Provider furnished	accepted with punch list
TAM-S003	Fathom facility	11	2026-11-26	continuous	Provider furnished	not commenced
TAM-S004	Fathom facility	29	2026-01-23	continuous	Provider furnished	not commenced
TAM-S005	Juniper facility	24	2024-05-17	single shift	shared	not commenced
TAM-S006	Evergreen facility	31	2026-12-15	continuous	shared	not commenced
TAM-S007	Mesa facility	4	2024-06-04	continuous	shared	accepted with punch list
TAM-S008	Harborline facility	39	2026-10-20	two shifts	Customer furnished	pending acceptance
TAM-S009	Granite facility	13	2025-10-10	single shift	Provider furnished	not commenced
TAM-S010	Dayton facility	38	2025-01-02	two shifts	Customer furnished	accepted with punch list
TAM-S011	Mesa facility	28	2025-08-11	two shifts	Customer furnished	not commenced
TAM-S012	Mesa facility	37	2025-10-04	two shifts	Provider furnished	accepted with punch list
TAM-S013	Larkspur facility	23	2024-06-21	continuous	Customer furnished	accepted
TAM-S014	Juniper facility	18	2025-08-27	continuous	shared	accepted
TAM-S015	Fathom facility	14	2024-03-25	single shift	Provider furnished	not commenced
TAM-S016	Keystone facility	15	2024-11-05	continuous	shared	accepted
TAM-S017	Dunbar facility	13	2026-11-18	continuous	Provider furnished	accepted
TAM-S018	Dunbar facility	30	2024-01-04	continuous	shared	pending acceptance
TAM-S019	Keystone facility	35	2026-05-19	single shift	Customer furnished	accepted
TAM-S020	Granite facility	33	2026-05-16	single shift	shared	accepted
TAM-S021	Fathom facility	25	2024-11-22	continuous	Customer furnished	accepted
TAM-S022	Larkspur facility	24	2024-02-25	two shifts	shared	not commenced
TAM-S023	Evergreen facility	12	2026-10-03	continuous	Customer furnished	accepted
TAM-S024	Dunbar facility	8	2025-12-15	two shifts	Provider furnished	accepted with punch list
TAM-S025	Granite facility	31	2025-01-12	two shifts	shared	accepted with punch list
TAM-S026	Juniper facility	25	2026-08-20	two shifts	shared	accepted
TAM-S027	Harborline facility	31	2024-12-22	two shifts	shared	accepted
TAM-S028	Crestline facility	7	2024-04-25	single shift	Provider furnished	not commenced
TAM-S029	Keystone facility	8	2025-09-24	single shift	Customer furnished	accepted with punch list
TAM-S030	Harborline facility	15	2026-03-17	two shifts	shared	not commenced

Tamarack site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
TAM-S031	Dunbar facility	15	2024-02-20	two shifts	shared	accepted
TAM-S032	Evergreen facility	31	2026-10-25	continuous	shared	not commenced
TAM-S033	Keystone facility	4	2024-09-24	continuous	Customer furnished	accepted with punch list
TAM-S034	Crestline facility	28	2025-04-22	single shift	shared	accepted with punch list
TAM-S035	Meridian facility	4	2026-01-03	single shift	Provider furnished	accepted with punch list
TAM-S036	Evergreen facility	4	2026-05-16	two shifts	Customer furnished	pending acceptance
TAM-S037	Keystone facility	7	2026-11-04	continuous	shared	pending acceptance
TAM-S038	Keystone facility	14	2024-09-22	single shift	Provider furnished	not commenced
TAM-S039	Keystone facility	24	2026-05-08	continuous	Provider furnished	accepted with punch list
TAM-S040	Granite facility	30	2026-06-17	continuous	Customer furnished	accepted
TAM-S041	Crestline facility	25	2025-01-27	continuous	Provider furnished	pending acceptance
TAM-S042	Crestline facility	33	2026-04-20	single shift	Customer furnished	accepted
TAM-S043	Granite facility	4	2024-11-23	single shift	Customer furnished	accepted with punch list
TAM-S044	Meridian facility	5	2026-11-26	single shift	Customer furnished	accepted with punch list
TAM-S045	Dunbar facility	37	2024-07-23	single shift	shared	pending acceptance
TAM-S046	Dunbar facility	39	2026-12-19	two shifts	Customer furnished	pending acceptance
TAM-S047	Crestline facility	27	2025-12-16	single shift	shared	accepted
TAM-S048	Evergreen facility	7	2026-10-07	single shift	Customer furnished	accepted with punch list
TAM-S049	Dayton facility	12	2026-09-09	two shifts	shared	pending acceptance
TAM-S050	Granite facility	18	2026-01-16	continuous	Customer furnished	pending acceptance
TAM-S051	Granite facility	8	2025-07-04	single shift	shared	accepted with punch list
TAM-S052	Larkspur facility	31	2026-02-04	continuous	shared	accepted with punch list
TAM-S053	Granite facility	25	2025-04-13	two shifts	Provider furnished	accepted
TAM-S054	Dayton facility	14	2026-03-26	continuous	Provider furnished	accepted with punch list
TAM-S055	Meridian facility	19	2025-07-20	single shift	Customer furnished	not commenced
TAM-S056	Keystone facility	4	2026-08-23	continuous	Provider furnished	accepted
TAM-S057	Granite facility	19	2024-11-28	two shifts	Provider furnished	accepted with punch list
TAM-S058	Meridian facility	24	2025-11-12	single shift	shared	accepted with punch list
TAM-S059	Granite facility	29	2025-07-01	continuous	Provider furnished	pending acceptance
TAM-S060	Meridian facility	36	2026-05-01	continuous	Customer furnished	not commenced
TAM-S061	Fathom facility	19	2026-08-23	continuous	Customer furnished	pending acceptance
TAM-S062	Meridian facility	12	2025-06-15	single shift	Customer furnished	pending acceptance
TAM-S063	Crestline facility	12	2026-08-28	single shift	shared	accepted with punch list
TAM-S064	Fathom facility	25	2024-05-22	single shift	Customer furnished	not commenced
TAM-S065	Larkspur facility	22	2026-10-23	single shift	Customer furnished	pending acceptance
TAM-S066	Dayton facility	37	2026-03-24	continuous	shared	not commenced
TAM-S067	Granite facility	33	2025-06-13	single shift	Customer	pending

Tamarack site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
					furnished	acceptance
TAM-S068	Mesa facility	4	2024-10-25	single shift	Customer furnished	pending acceptance
TAM-S069	Crestline facility	6	2025-06-10	continuous	shared	pending acceptance
TAM-S070	Larkspur facility	37	2024-06-22	single shift	shared	accepted
TAM-S071	Dayton facility	38	2025-11-02	continuous	shared	accepted
TAM-S072	Meridian facility	19	2024-08-17	two shifts	Customer furnished	pending acceptance
TAM-S073	Fathom facility	36	2024-10-13	two shifts	shared	accepted
TAM-S074	Mesa facility	30	2025-08-12	continuous	Provider furnished	pending acceptance
TAM-S075	Fathom facility	18	2026-07-18	single shift	shared	not commenced
TAM-S076	Harborline facility	8	2025-11-25	single shift	shared	accepted
TAM-S077	Fathom facility	38	2026-06-27	two shifts	shared	accepted with punch list
TAM-S078	Dayton facility	39	2026-06-02	continuous	Customer furnished	accepted
TAM-S079	Dunbar facility	31	2024-12-04	continuous	Provider furnished	pending acceptance
TAM-S080	Fathom facility	27	2024-01-17	two shifts	Customer furnished	accepted
TAM-S081	Keystone facility	23	2026-12-08	single shift	Provider furnished	accepted
TAM-S082	Fathom facility	24	2025-08-08	continuous	Provider furnished	pending acceptance
TAM-S083	Fathom facility	27	2025-12-14	continuous	Customer furnished	not commenced
TAM-S084	Larkspur facility	31	2025-05-20	continuous	Customer furnished	accepted

7. Data, intellectual property and licences

Tamarack acknowledges that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. As a remedy, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Minnesota is where Tamarack runs industrial distribution operations across 4 sites, and the Termination Assistance and Transition Letter follows that footprint. The Tamarack file records the position as at the last amendment, and Article 6 (Fees and Payment) is the reference a reviewer should cite when raising it.

The Provider warrants to Tamarack that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. On the operative wording, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Minnesota is where Tamarack runs industrial distribution operations across 4 sites, and the Termination Assistance and Transition Letter follows that footprint. Where Tamarack has raised a query the Provider has answered by reference to Article 11 (Data and Telemetry), and the exchange is on the contract file.

Article 9 (Customer Obligations) of the Termination Assistance and Transition Letter is to be construed so that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. In point of remedy, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. This bites at Tamarack's 4 sites, since a industrial distribution operator administers the Termination Assistance and Transition Letter where the units work. Administration of this obligation for Tamarack sits with the account team rather than with central contracts, and Article 20 (Notices) is where it is evidenced.

Save as Exhibit B otherwise provides, the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. Negotiated position: the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Running 4 sites in industrial distribution, Tamarack takes this obligation at site level rather than centrally under the Termination Assistance and Transition Letter. Notices under Article 6 (Fees and Payment) go to the contracting entity named in the recital and not to any Tamarack affiliate that may operate a site.

8. Indemnities and limitation of liability

The Provider warrants to Tamarack that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. Negotiated position: the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. 4 sites in Minnesota means Tamarack applies the Termination Assistance and Transition Letter through its regional operations team rather than through head office. Tamarack has taken the point up once since signature; the correspondence is filed against Article 8 (Acceptance) and did not result in an amendment.

Tamarack Distribution Company has notified the Provider that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. As it bites, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Tamarack treats the obligation as a site-level matter across its 4 sites in Minnesota, consistent with the Termination Assistance and Transition Letter. For a customer of Tamarack's size the clause is unremarkable, but Article 21 (Governing Law and Disputes) is drafted more tightly here than in the Provider's standard form.

Save as Exhibit A otherwise provides, either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. In substance, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. For Tamarack, a industrial distribution operator running 4 sites out of Minnesota, the point matters because the Termination Assistance and Transition Letter is administered site by site. Notices under Article 5 (Delivery and Title) go to the contracting entity named in the recital and not to any Tamarack affiliate that may operate a site.

Tamarack Distribution Company is entitled to require that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. In effect, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Tamarack treats the obligation as a site-level matter across its 4 sites in Minnesota, consistent with the Termination Assistance and Transition Letter. The Tamarack file records the position as at the last amendment, and Article 21 (Governing Law and Disputes) is the reference a reviewer should cite when raising it.

Tamarack transition letter - Schedule 3 - Deployment Milestones and Payment Triggers

Tamarack milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
TAM-M001	units delivered	2025-12	24	no delay	$76,998	invoiceable on acceptance
TAM-M002	integration test passed	2024-04	13	no delay	$71,589	invoiceable on certification
TAM-M003	network readiness certified	2026-03	8	no delay	$176,966	no payment attached
TAM-M004	integration test passed	2025-04	7	no delay	$186,052	invoiceable on acceptance
TAM-M005	network readiness certified	2024-10	4	labour agreement	$71,530	invoiceable on acceptance
TAM-M006	pilot acceptance	2026-03	16	no delay	$106,530	invoiceable on acceptance
TAM-M007	integration test passed	2026-11	31	no delay	$45,480	invoiceable on certification
TAM-M008	full acceptance	2024-04	16	network provisioning	$187,375	invoiceable on certification
TAM-M009	steady-state handover	2024-12	29	Customer IT dependency	$49,894	no payment attached
TAM-M010	warranty commencement	2026-07	17	no delay	$240,635	no payment attached
TAM-M011	site survey complete	2024-06	13	no delay	$179,715	invoiceable on certification
TAM-M012	integration test passed	2026-05	27	network provisioning	$226,301	no payment attached
TAM-M013	network readiness certified	2026-09	32	no delay	$104,119	invoiceable on acceptance
TAM-M014	integration test passed	2024-12	6	seasonal freeze	$102,847	invoiceable on acceptance

Tamarack milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
TAM-M015	network readiness certified	2025-10	2	Customer IT dependency	$69,570	no payment attached
TAM-M016	site survey complete	2024-03	17	labour agreement	$128,504	invoiceable on acceptance
TAM-M017	network readiness certified	2026-02	7	no delay	$156,140	invoiceable on acceptance
TAM-M018	integration test passed	2026-01	20	network provisioning	$38,944	no payment attached
TAM-M019	steady-state handover	2026-01	25	labour agreement	$39,056	no payment attached
TAM-M020	pilot acceptance	2024-05	16	seasonal freeze	$44,366	invoiceable on certification
TAM-M021	warranty commencement	2024-05	2	Customer IT dependency	$19,562	invoiceable on acceptance
TAM-M022	network readiness certified	2026-05	on plan	seasonal freeze	$216,034	no payment attached
TAM-M023	network readiness certified	2025-01	14	seasonal freeze	$249,099	invoiceable on acceptance
TAM-M024	pilot acceptance	2024-04	25	labour agreement	$123,985	invoiceable on acceptance
TAM-M025	network readiness certified	2025-08	1	no delay	$41,788	invoiceable on acceptance
TAM-M026	integration test passed	2024-10	18	labour agreement	$266,195	no payment attached
TAM-M027	full acceptance	2025-09	30	Customer IT dependency	$143,919	invoiceable on acceptance
TAM-M028	site survey complete	2026-07	5	labour agreement	$119,858	no payment attached
TAM-M029	site survey complete	2025-06	21	network provisioning	$221,844	invoiceable on certification
TAM-M030	steady-state handover	2024-02	13	no delay	$259,409	invoiceable on certification
TAM-M031	steady-state handover	2024-02	23	seasonal freeze	$151,670	invoiceable on certification
TAM-M032	units delivered	2026-05	11	no delay	$98,324	invoiceable on certification
TAM-M033	network readiness certified	2024-09	33	facility readiness	$134,323	no payment attached
TAM-M034	site survey complete	2026-06	5	labour agreement	$114,600	invoiceable on certification
TAM-M035	pilot acceptance	2025-06	25	no delay	$204,680	no payment attached
TAM-M036	pilot acceptance	2026-08	21	seasonal freeze	$13,513	invoiceable on acceptance
TAM-M037	units delivered	2026-04	31	labour agreement	$29,285	no payment attached
TAM-M038	units delivered	2024-03	21	no delay	$92,742	no payment attached
TAM-M039	units delivered	2025-01	25	Customer IT dependency	$28,371	invoiceable on certification
TAM-M040	pilot acceptance	2026-10	23	labour agreement	$96,004	no payment attached
TAM-M041	site survey complete	2024-05	10	no delay	$193,992	no payment attached
TAM-M042	site survey complete	2024-06	28	labour agreement	$186,460	invoiceable on certification
TAM-M043	site survey complete	2025-07	22	labour agreement	$154,447	invoiceable on certification
TAM-M044	full acceptance	2024-10	26	labour agreement	$194,616	invoiceable on acceptance
TAM-M045	steady-state handover	2026-05	9	Customer IT dependency	$62,896	invoiceable on certification
TAM-M046	network readiness certified	2024-08	22	network provisioning	$29,820	invoiceable on acceptance
TAM-M047	pilot acceptance	2024-04	24	no delay	$194,492	invoiceable on acceptance
TAM-M048	full acceptance	2026-02	15	network provisioning	$118,649	no payment attached

Tamarack milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
TAM-M049	warranty commencement	2026-05	8	seasonal freeze	$105,666	invoiceable on certification
TAM-M050	units delivered	2026-10	11	Customer IT dependency	$110,862	invoiceable on acceptance
TAM-M051	integration test passed	2026-04	13	Customer IT dependency	$220,784	invoiceable on acceptance
TAM-M052	full acceptance	2025-12	23	network provisioning	$203,516	invoiceable on acceptance
TAM-M053	units delivered	2024-01	26	Customer IT dependency	$61,079	no payment attached
TAM-M054	warranty commencement	2026-06	13	seasonal freeze	$220,351	no payment attached
TAM-M055	site survey complete	2026-09	10	Customer IT dependency	$124,557	invoiceable on acceptance
TAM-M056	full acceptance	2026-02	25	labour agreement	$239,083	no payment attached
TAM-M057	full acceptance	2025-02	on plan	facility readiness	$171,623	invoiceable on acceptance
TAM-M058	site survey complete	2024-07	26	network provisioning	$183,504	invoiceable on certification
TAM-M059	steady-state handover	2026-04	27	facility readiness	$226,322	invoiceable on acceptance
TAM-M060	integration test passed	2026-11	22	labour agreement	$247,971	invoiceable on certification
TAM-M061	pilot acceptance	2025-12	3	seasonal freeze	$45,214	invoiceable on acceptance
TAM-M062	units delivered	2024-01	13	seasonal freeze	$123,569	invoiceable on certification
TAM-M063	full acceptance	2026-06	21	Customer IT dependency	$172,427	invoiceable on acceptance
TAM-M064	full acceptance	2025-04	27	network provisioning	$120,984	invoiceable on certification
TAM-M065	network readiness certified	2024-03	6	Customer IT dependency	$124,489	no payment attached
TAM-M066	steady-state handover	2025-03	2	seasonal freeze	$103,027	invoiceable on certification
TAM-M067	integration test passed	2024-11	33	network provisioning	$191,005	no payment attached
TAM-M068	steady-state handover	2026-11	33	labour agreement	$222,436	invoiceable on certification
TAM-M069	network readiness certified	2026-05	5	Customer IT dependency	$139,697	invoiceable on acceptance
TAM-M070	steady-state handover	2024-07	27	facility readiness	$210,616	invoiceable on certification
TAM-M071	steady-state handover	2024-04	31	Customer IT dependency	$142,683	invoiceable on certification
TAM-M072	units delivered	2024-08	6	Customer IT dependency	$27,500	invoiceable on acceptance
TAM-M073	network readiness certified	2024-08	17	labour agreement	$142,708	no payment attached
TAM-M074	full acceptance	2026-04	on plan	seasonal freeze	$189,382	invoiceable on acceptance
TAM-M075	network readiness certified	2025-12	24	no delay	$77,053	invoiceable on certification
TAM-M076	warranty commencement	2025-08	33	no delay	$37,937	no payment attached
TAM-M077	steady-state handover	2024-08	4	network provisioning	$238,908	invoiceable on acceptance
TAM-M078	site survey complete	2025-09	21	labour agreement	$215,058	invoiceable on certification
TAM-M079	integration test passed	2025-01	14	Customer IT dependency	$116,406	no payment attached
TAM-M080	warranty commencement	2025-11	5	network provisioning	$227,881	no payment attached
TAM-M081	units delivered	2026-02	15	network provisioning	$178,443	invoiceable on certification
TAM-M082	pilot acceptance	2025-04	29	no delay	$168,897	invoiceable on certification

Tamarack milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
TAM-M083	steady-state handover	2025-12	11	network provisioning	$31,465	invoiceable on acceptance
TAM-M084	network readiness certified	2024-01	3	network provisioning	$262,815	no payment attached
TAM-M085	site survey complete	2024-08	16	no delay	$20,716	no payment attached
TAM-M086	integration test passed	2026-04	15	Customer IT dependency	$132,824	invoiceable on certification

9. Term, termination and transition

Tamarack retains the right, notwithstanding Article 13 (Licences), to require that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Intended effect: performance is measured against the exhibit and not against any statement made in the parties' correspondence. Tamarack runs 4 sites from Minnesota in industrial distribution, so the Termination Assistance and Transition Letter is administered locally and this clause is applied per site. The obligation as it applies to Tamarack was tightened at signature, and Article 21 (Governing Law and Disputes) carries the negotiated wording rather than the standard wording.

On the terms of Exhibit C, title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. Practically, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Minnesota is where Tamarack runs industrial distribution operations across 4 sites, and the Termination Assistance and Transition Letter follows that footprint. Because Tamarack operates in industrial distribution, the practical burden of this clause falls on its Minnesota operation, and Article 14 (Indemnities) governs how it is measured.

Where Article 21 (Governing Law and Disputes) applies, acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. Materially, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Site count matters here: Tamarack has 4 sites, and the Termination Assistance and Transition Letter treats each as a separate delivery point. Tamarack has taken the point up once since signature; the correspondence is filed against Article 17 (Transition Assistance) and did not result in an amendment.

As between Tamarack and the Provider, the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. Tighter here than standard: performance is measured against the exhibit and not against any statement made in the parties' correspondence. For Tamarack, a industrial distribution operator running 4 sites out of Minnesota, the point matters because the Termination Assistance and Transition Letter is administered site by site. Administration of this obligation for Tamarack sits with the account team rather than with central contracts, and Article 8 (Acceptance) is where it is evidenced.

10. Assignment, notices and general

Tamarack and the Provider agree that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. By way of qualification, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. This bites at Tamarack's 4 sites, since a industrial distribution operator administers the Termination Assistance and Transition Letter where the units work. Nothing in the Tamarack negotiation history qualifies Article 15 (Limitation of Liability), and a reviewer should not read the pre-signature drafts as doing so.

The Provider has undertaken to Tamarack that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Per the amendment history, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. In industrial distribution the burden of this sits with operations, and Tamarack discharges it across 4 sites under the Termination Assistance and Transition Letter. The Tamarack file records the position as at the last amendment, and Article 5 (Delivery and Title) is the reference a reviewer should cite when raising it.

As between Tamarack and the Provider, the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Strictly, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. 4 sites in Minnesota means Tamarack applies the Termination Assistance and Transition Letter through its regional operations team rather than through head office. Because Tamarack operates in industrial distribution, the practical burden of this clause falls on its Minnesota operation, and Article 12 (Intellectual Property) governs how it is measured.

Save as Exhibit B otherwise provides, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. Strictly, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Tamarack runs 4 sites from Minnesota in industrial distribution, so the Termination Assistance and Transition Letter is administered locally and this clause is applied per site. Administration of this obligation for Tamarack sits with the account team rather than with central contracts, and Article 7 (Service Levels) is where it is evidenced.